

		pregnancy as harassment “because of sex.” (Gov. Code, § 12940(j)(4)(C).) Because the EFAA applies to disputes relating to conduct alleged to constitute sexual harassment under applicable state law, Plaintiff’s pregnancy-based harassment allegations fall within the scope of the EFAA. <i>EFAA Applies to All Claims</i> Because Plaintiff has sufficiently alleged a sexual-harassment dispute within the meaning of the EFAA, the arbitration agreement is unenforceable as to the entire action, not merely the harassment claim. (See <i>Liu, supra</i>, 105 Cal.App.5th at pp. 802-807; <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 559; <i>Casey v. Superior Court</i> (2025) 108 Cal.App.5th 575, 583; <i>Quilala v. Securitas Security Services USA, Inc.</i> (2025) 117 Cal.App.5th 75, 88-89.) Accordingly, the motion is DENIED. <u>Joinder</u> Defendants Mitchell International, Enlyte Group LLC, and Kelly Sedemund’s motion for joinder is GRANTED. However, the relief requested is DENIED for the same reasons discussed above. <i>Defendant Volt to give notice.</i>
107	Johnson vs. City of Laguna Beach, 24-01383346	Defendant City of Laguna Beach (“Defendant”) moves to compel Plaintiffs Charles William Johnson and Christine Jenna Cilano to appear in California for Orthopedic Independent Medical Examinations. Plaintiff opposes the motion. Pursuant to Code of Civil Procedure section 2032.220, “[i]n any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (2) The examination is conducted at a location within 75 miles of the residence of the examinee.” (Code Civ. Proc., § 2032.220, subd. (a).)

		Code of Civil Procedure section 2032.320 carves out an exception to the general rule that the independent medical examination must be conducted at a location within 75 miles of the residence of the examinee. Code of Civil Procedure section 2032.320 states: "(e) If the place of the examination is more than 75 miles from the residence of the person to be examined, an order to submit to it shall be entered only if both of the following conditions are satisfied: (1) The court determines that there is good cause for the travel involved. (2) The order is conditioned on the advancement by the moving party of the reasonable expenses and costs to the examinee for travel to the place of examination." (Code Civ. Proc., § 2032.320, subd. (e).) "[T]he choice of the examining physician generally belongs to the defendant." (<i>Pratt v. Union Pacific Railroad Co.</i> (2008) 168 Cal.App.4th 165, 181 [85 Cal.Rptr.3d 321, 334], as modified (Nov. 19, 2008).) Here, the Court finds good cause for Plaintiffs to submit to their respective independent medical examinations in California. The Court finds the logistics and hurdles of finding and coordinating the medical examinations for out of state examinations with an out of state doctor who is willing to travel to California for expert testimony during trial and related trial preparation establishes good cause for Plaintiffs to submit to their independent medical examinations in California, the forum state. Likewise, the Court finds that an in state examination with an in state and local doctor ensures that the doctor will be available to testify if the case goes to trial. The Court is not persuaded by Plaintiffs' argument that such issues can be cured via video expert testimony because Defendant should be permitted to present its case as it sees fit and not limited to a video testimony instead of an in-person testimony.
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		The Court is also persuaded by Dr. Kreitenberg's inability to conduct a medical examination in Vermont since he is not licensed in Vermont. Requiring Defendant to choose an expert in Vermont impedes on Defendant's choice of the examining physician. Again, however, trial will be taking place in California and therefore having a local expert that is readily available for witness testimony in California is sufficient to establish the requisite good cause to conduct the medical examinations in the jurisdiction wherein trial will take place and where the incident occurred. The motion is therefore GRANTED. Plaintiffs shall have the option to stay one or two nights and the expenses and costs shall be as follows: 1. Roundtrip airfare from Vermont to Los Angeles, limited to standard coach or economy seating including one checked bag; 2. Hotel accommodations at a price up to \$250 per day inclusive of taxes/fees, for a maximum of two (2) nights, located within ten (10) miles of either Los Angeles International Airport (LAX) or Dr. Kreitenberg's office; 3. Rental Car (Economy or Compact; not to exceed \$55 a day) between LAX, the hotel, and Dr. Kreitenberg's office. 4. A meal stipend of \$75.00 per Plaintiff per day. <i>Moving party to give notice.</i>
108	Beverly vs. Newport Mesa Riding Center, 23-01338428	Defendant, Sabo Eventing, LLC dba Newport Mesa Riding Center ("Defendant" or "Sabo Eventing"), moves for an order compelling Plaintiff, Madison Beverly, by and through her guardian ad litem, Michael Beverly ("Plaintiff" or "Madison"), to arbitrate this dispute and for an order staying the present action pending the outcome of the arbitration. On September 30, 2024, this Court denied Defendant's motion to compel arbitration.